



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35060600

Date: JAN. 22, 2025

Appeal of California Service Center Decision

Form I-129F, Petition for Alien Fiancé(e)

The Petitioner seeks to classify the Beneficiary as his K-1 nonimmigrant fiancée. Immigration and Nationality Act (the Act) section 101(a)(15)(K)(i), 8 U.S.C. § 1101(a)(15)(K)(i). For this classification, the Petitioner must establish that the couple met in person during the two-year period preceding the petition's filing, have a bona fide intention to marry, and are legally able and actually willing to conclude a valid marriage in the United States within 90 days of admission. Section 214(d)(1) of the Act, 8 U.S.C. § 1184(d)(1).

The Director of the California Service Center denied the petition, concluding that the record did not establish that the Petitioner had provided documentation of his criminal history as required by the International Marriage Broker Act of 2005 (IMBRA)¹ and section 214(d)(1) of the Act. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

Fiancée visa petitions are subject to IMBRA's criminal history reporting requirements, which are codified at section 214(d)(1) of the Act. Under this statute, a fiancée visa petition cannot be approved unless it includes "information on any criminal convictions of the petitioner for any specified crime . . . and information on any permanent protection or restraining order² issued against the petitioner related to any specified crime."³

¹ This provision is part of the Violence Against Women and Department of Justice Reauthorization Act of 2005 (VAWA 2005), Pub. L. 109-162, 119 Stat. 2960 (2006).

² A "permanent" protection order, as described in section 214(d)(1) of the Act, is one that is granted after a hearing with notice to both sides. Despite the name, such an order may have an expiration date set by state law. *Protective Order*, Black's Law Dictionary (12th ed. 2014); *see also* N.Y. Crim. Proc. § 530.12(5) (setting maximum durations for protection orders).

³ The list of specified crimes is found at Section 214(d)(3)(B) of the Act.

If a petitioner has been convicted by a court or military tribunal of any of the specified crimes, they are required to submit certified copies of all court and police records showing the charges and dispositions for each of these convictions. *See generally* USCIS Policy Memorandum HQOPRD 70/6.2.11, *International Marriage Broker Regulation Act Implementation Guidance* 3-4 (Jul. 21, 2006), <https://www.uscis.gov/sites/default/files/document/memos/imbra072106.pdf> (Aytes memo). These records, as well as the relevant results of any criminal background checks conducted by USCIS, then become part of the Form I-129F, Petition for Alien Fiancé(e) record, and if the petition is approved, the Department of State will disclose the relevant criminal convictions to the beneficiary during their consular interview. *Id.*; 8 U.S.C. § 1375a(b)(1)(A).

II. ANALYSIS

In his Form I-129F, the Petitioner answered “no” to Part 3, Question 1, which asks if the petitioner has ever been subject to any protective or restraining order. He also answered “no” to question 2.a., which asks if the petitioner has ever been arrested for or convicted of a specified crime, such as stalking. For Question 3, he chose the option which states that he was being battered or subjected to extreme cruelty at the time of his criminal conviction, and that he had violated a protective order issued for his own protection. Finally, he answered “yes” to Question 4.a., which asks if the petitioner has any other arrest or penal history. He did not answer Question 4.b., which requests further information about all the protective orders, arrests, and other history disclosed in the prior questions. He also provided a copy of one protection order that was issued against him in [] 2022.

The Director issued a request for evidence (RFE), noting, among other things, that a USCIS background check showed that the Petitioner had been subject to several prior protection orders apart from the one he had provided, and that this contradicted his claim on Form I-129F that he had never been subject to such an order. The RFE listed the protection orders shown in the background check and requested copies of each one, as well as disposition and/or arrest records for each of his arrests and convictions, as required by the Form I-129F instructions.⁴

In response to the RFE, the Petitioner provided documentation including:

- New York State certificates of disposition regarding his arrests in [] 2019, [] 2019, [] 2020, [] 2020, [] 2021, and [] 2022, mostly for violating various protective orders;
- An [] 2021 grand jury indictment of the Petitioner for 17 criminal counts;
- Court documents indicating that the Petitioner pleaded guilty and was convicted of six of the 17 counts;
- A copy of his appeal of this conviction; and
- Copies of five of the seven protection orders listed in the Director’s RFE.

⁴ *Instructions for Form I-129F, Petition for Alien Fiancé(e)* at 6-7, <https://www.uscis.gov/sites/default/files/document/forms/i-129finstr.pdf>; *see also* 8 C.F.R. §103.2(a)(1) (incorporating form instructions into regulations requiring that form’s submission), section 214(d)(1) of the Act (stating that fiancée visas cannot be approved unless they include all information required by regulation).

The Director denied the petition, noting that the Petitioner had not submitted copies of all of his protection orders and had not provided copies of police records related to all of his arrests, and so had not complied with the I-129F filing instructions or fulfilled his IMBRA reporting requirements.

On appeal, the Petitioner resubmits his previously-provided documentation, as well as more criminal history documents and evidence that he traveled to meet with the Beneficiary in 2023. However, he has not overcome the Director's grounds of denial.

A fiancée petition cannot be approved unless it includes information required by regulation, including "information on any permanent protection or restraining order issued against the petitioner related to any specified crime." Section 214(d)(1) of the Act. As stated by the Director in the RFE and denial, a USCIS background check indicates that the following protective orders have been issued against the Petitioner:

1. Order of [redacted] 2019, which expired on [redacted] 2020;
2. Order of [redacted] 2019, which expired on [redacted] 2020;
3. Order of [redacted] 2019, which expired on [redacted] 2024;
4. Order of [redacted] 2020, which expired on [redacted] 2021;
5. Order of [redacted] 2020, which will expire on [redacted] 2025;
6. Order of [redacted] 2022, which will expire on [redacted] 2030; and
7. Order of [redacted] 2022, which expired [redacted] 2022.

The documents the Petitioner provided indicate that the first, second, and fourth orders were temporary, while the fifth and sixth were final, or permanent, orders. He did not submit copies of the third order issued on [redacted] 2019, or the seventh order issued on [redacted] 2022, either in response to the RFE or on appeal. However, USCIS records indicate that the third order was a permanent one and the seventh order was temporary.

The [redacted] 2022 final order was related to the Petitioner's guilty plea and conviction for six offenses, one of which was a count of aggravated family offense under N.Y. Penal Law § 240.75, defined as committing a specified misdemeanor against a member of one's family or household⁵ within five years of being convicted of another such offense. In this instance, the misdemeanor underlying the aggravated family offense was stalking in the fourth degree under N.Y. Penal Law § 120.45(2), which states that "[a] person is guilty of stalking in the fourth degree when he or she intentionally . . . engages in a course of conduct directed at a specific person, and knows or reasonably should know that such conduct . . . causes material harm to the mental or emotional health of such person"

One of the specified crimes listed at Section 214(d)(3)(B) of the Act is stalking, which is defined in section 3 of VAWA 2005 as "engaging in a course of conduct directed at a specific person that would cause a reasonable person to . . . fear for his or her safety or the safety of others; or . . . suffer substantial emotional distress." Because this definition matches N.Y. Penal Law § 120.45(2), the record therefore

⁵ Family and household members are defined at N.Y. Crim. Proc. § 530.11.

indicates that the [] 2022 final protective order was related to a specified crime under IMBRA, and that the Petitioner has been convicted of at least one such specified crime.⁶

In his affidavit and other supporting materials, the Petitioner does not address the two protective orders which he has not provided for the record, one of which is a permanent order that must be disclosed under section 214(d)(1) of the Act. Given his false answers regarding his criminal history on Form I-129F, the fact that he has been convicted of at least one IMBRA specified crime, and his extensive history of arrests and convictions for family offenses, the Petitioner therefore has not established that he has provided copies of all the permanent protection orders issued against him relating to any specified crime. *Id.*

III. CONCLUSION

The record does not establish that the Petitioner has complied with the IMBRA criminal history disclosure requirements. Therefore, he has not met the statutory and regulatory requirements for classifying the Beneficiary as a K-1 nonimmigrant.

ORDER: The appeal is dismissed.

⁶ While we acknowledge the criminal appeal submitted with the record, the Petitioner does not provide any indication of the outcome of that appeal. We further note that the record includes the Petitioner's waiver of most of his appeal rights in connection with his guilty plea in the 2022 case. The Petitioner therefore has not overcome the evidence that he was convicted of a specified crime under IMBRA.